



Appeal Decision

Site visit made on 19 August 2026

by Stewart Glassar BSc (Hons) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 11 September 2026

Appeal Ref: 6012763

Fourays, Horsham Road, Capel, Dorking RH5 5LF

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Julian Sharpe against the decision of Mole Valley District Council.
 - The application Ref is MO/2026/00653.
 - The development proposed is the erection of a garage and associated extension to the existing driveway.
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Decision

1. The appeal is allowed and planning permission is granted for the erection of a garage and associated extension to the existing driveway at Fourays, Horsham Road, Capel, Dorking RH5 5LF in accordance with the terms of the application, Ref MO/2026/00653, subject to the conditions in the schedule below.

Preliminary Matters

2. I have taken the description of development from the Council's decision notice as it more clearly encompasses the extent of the proposed development.
3. A revised National Planning Policy Framework (the Framework) was published by the Government in August 2026, after the determination of the planning application. It does not raise any new considerations in relation to this appeal.

Main Issue

4. The main issue is whether the proposed development would be inappropriate development in the Green Belt having regard to the National Planning Policy Framework and any relevant development plan policies.

Reasons

5. The Framework stipulates that development in the Green Belt should be regarded as inappropriate unless it falls within one of the categories set out in policy GB7. In tandem with this, Policy EN1 of the Mole Valley Local Plan 2024 (MVLP), seeks to protect the Green Belt from inappropriate development as defined by national policy. This policy also identifies specific forms of development, some of which require compliance with other Local Plan policies. These are broadly reflective of the Framework.
6. Policy GB7(1)(e) of the Framework states that the redevelopment of previously developed land (including a material change of use to residential or mixed-use including residential), which would not cause substantial harm to the openness of

the Green Belt, is not inappropriate in the Green Belt and therefore should not be regarded as harmful to it.

7. The Council, taking into account a previous appeal decision on the site, accepted that the site would represent previously developed land. I have no reason to disagree with that conclusion. Thus, the key issue is whether the proposal would result in substantial harm to the openness of the Green Belt.
8. The garage and driveway would be located within the grassed, front garden area of the existing dwelling. The garage is said to have a footprint of some 36.54m² and as whole the proposal would occupy just over 20% of the front garden. Clearly, as there is currently no built form in this part of the site there would inevitably be a spatial loss of openness of the Green Belt.
9. The garage would be set away from the boundary with Horsham Road and the mature trees and vegetation around the site would largely conceal the building and driveway from wider views. The scale of activity the development would generate is unlikely to have a material effect upon views or the wider area more generally. Despite this, some more localised views of the garage and driveway may be possible, particularly from occupants of the new dwelling which has recently been permitted. However, the positioning of outbuildings forward of a main dwelling is not an uncommon occurrence in the area and so visually it would not appear out of context with this part of the Green Belt.
10. Taking the above as a whole, the development would result in some uplift in the spatial as well as visual presence of the new garage. Collectively, even if this resulted in some harm to the openness of the Green Belt, given the amount and type of development proposed as well as where it would be positioned, I do not find that this would result in substantial harm to the openness of the Green Belt.
11. Therefore, the proposal would not be inappropriate development in the Green Belt. As such, it would accord with the approach to development in the Green Belt as set out in the Framework and Policy EN1 of the MVLP which, amongst other things seek to safeguard the Green Belt from inappropriate development.
12. As I have found that the proposal would not be inappropriate development in the Green Belt by virtue of policy GB7(1)(e) of the Framework, it is not necessary for me to consider whether it would accord with any other Framework exceptions as this would not alter my findings in relation to GB7(1)(e). As a further consequence, I also do not need to consider whether there are other considerations and whether they amount to very special circumstances necessary to justify the development.

Conditions

13. In addition to the standard time limit, a condition listing the approved drawings is necessary in the interests of certainty.
14. The site is within the countryside and the garage would be positioned close to some existing trees. The proposal is supported by various documents relating to tree protection, ecological and biodiversity enhancements. Conditions ensuring the necessary protection and enhancement measures are properly implemented are therefore necessary. In support of these measures, it is also necessary to impose a condition ensuring that any external lighting serving the development is appropriate for this location.

Conclusion

15. The proposal would not be inappropriate development in the Green Belt. Therefore, having considered the development plan as a whole, along with all other relevant material considerations, I conclude that the appeal should be allowed subject to conditions.

Stewart Glassar

INSPECTOR

Schedule of Conditions:

- 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with the following approved drawings and documents:

Location Plan	-	PI03
Proposed Site Plan	-	PL-04
Cross Section	-	PL02
Proposed Plans	-	PL01 A
Tree Protection Plan	-	4352-PL-07
Ecological Enhancements Plan	-	PL-05
Arboricultural Impact Assessment and Method Statement		
HPI Protection details, Ecological Enhancement Plan, Construction Environment Management Plan		
- 3) The development hereby permitted shall be carried out in accordance with the approved HPI Protection Details, Ecological Enhancement Plan and Construction Environment Management Plan.
- 4) The development hereby permitted shall be carried out in accordance with the approved Tree Protection Plan (4352-PL-07) and Arboricultural Impact Assessment and Method Statement.
- 5) Prior to the occupation of the development, the biodiversity enhancements included on Drawing Number PL-05 should be installed.
- 6) Details of any external lighting serving or incidental to the development hereby permitted shall be submitted to and approved in writing by the local planning authority. The development shall be carried out in accordance with the approved details.

*** END OF SCHEDULE***